

HB 2297 -- FENCES AND ENCLOSURES

SPONSOR: Haden

This bill specifies that if the owner of a property or a contractor hired by the owner constructs, maintains, or repairs a division fence used to enclose a field or enclosure where animals are kept, the owner or contractor may enter onto the adjoining property up to 10 feet to repair, maintain or construct the fence. The owner or contractor is not liable for damages for clearing any trees, brush, or vegetation within the 10 foot boundary or division fence. However the owner or contractor would be liable for damages caused by entry onto the adjoining property, including damages to crops.

These provisions do not include adjoining property owned by any utility company, railroad, or certain zoological parks, wildlife conservation facilities, or animal sanctuaries. The provisions do not allow an owner or contractor to enter into a building on the adjoining property.

This bill is similar to HB 1116 (2025).